

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lianne May	Team: Squad #7	CCRB Case #: 202102376	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 02/18/2021 6:20 AM, Monday, 02/22/2021 9:10 AM, Monday, 03/08/2021 6:55 PM	Location of Incident: § 87(2)(b)	Precinct: 43	18 Mo. SOL 8/18/2022	EO SOL 8/18/2022	
Date/Time CV Reported Thu, 04/15/2021 9:16 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 04/15/2021 9:16 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Edelman Santos	239	949622	WARRSEC
2. DT3 Gary Capellan	339	950154	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Anthony Galasso	1670	940170	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Edelman Santos	Abuse: On February 18, 2021, Detective Edelman Santos entered § 87(2)(b) in the Bronx	§ 87(2)(b)
B.DT3 Gary Capellan	Abuse: On February 18, 2021, Detective Gary Capellan entered § 87(2)(b) in the Bronx	§ 87(2)(b)
C.DT3 Edelman Santos	Abuse: On February 18, 2021, Detective Edelman Santos searched § 87(2)(b) in the Bronx	§ 87(2)(b)
D.DT3 Gary Capellan	Abuse: On February 18, 2021, Detective Gary Capellan searched § 87(2)(b) in the Bronx	§ 87(2)(b)
E.DT3 Edelman Santos	Abuse: On February 22, 2021, Detective Edelman Santos entered § 87(2)(b) in the Bronx	§ 87(2)(b)
F.DT3 Edelman Santos	Abuse: On February 22, 2021, Detective Edelman Santos searched § 87(2)(b) in the Bronx	§ 87(2)(b)
G.DT3 Edelman Santos	Abuse: On March 8, 2021, Detective Edelman Santos threatened to damage § 87(2)(b)'s property.	§ 87(2)(b)
H.DT3 Edelman Santos	Abuse: On March 8, 2021, Detective Edelman Santos entered § 87(2)(b) in the Bronx	§ 87(2)(b)

Case Summary

On April 4, 2021, § 87(2)(b) filed the following complaint through the CCRB Processing System (BR1).

§ 87(2)(b) lives at 1423 Noble Avenue in Apartment 4 in the Bronx and hired § 87(2)(b) as her home attendant. On February 18, 2021, § 87(2)(b) consented to Detectives Edelman Santos and Gary Capellan, both of Bronx Warrant Squad, entering § 87(2)(b)'s apartment for § 87(2)(b) with a parole warrant (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) alleged that Det. Santos and Det. Capellan conducted searches of places in which a person could not be hiding (**Allegations C and D: Abuse of Authority, § 87(2)(g)**). The detectives did not find § 87(2)(b). On February 22, 2021, § 87(2)(b) consented to Det. Santos entering her apartment in his investigation for § 87(2)(b) (**Allegation E: Abuse of Authority, § 87(2)(g)**). Again, § 87(2)(b) alleged that Det. Santos conducted searches of places in which a person could not be hiding (**Allegation F: Abuse of Authority, § 87(2)(g)**). On March 8, 2021, Det. Santos informed § 87(2)(b) that he could break her door if she did not allow him entry (**Allegation G: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) opened the door and told Det. Santos that § 87(2)(b) was in her apartment. Det. Santos entered and arrested § 87(2)(b) on his parole warrant (**Allegation H: Abuse of Authority, § 87(2)(g)**).

The investigation received no body-worn cameras for any of these incidents as the detectives are not equipped with body-worn cameras.

Findings and Recommendations

Allegation A-Abuse of Authority: On February 18, 2021, Detective Edelman Santos entered § 87(2)(b) in the Bronx

Allegation B- Abuse of Authority: On February 18, 2021, Detective Gary Capellan entered § 87(2)(b) in the Bronx

Allegation C- Abuse of Authority: On February 18, 2021, Detective Edelman Santos searched § 87(2)(b) in the Bronx

Allegation D- Abuse of Authority: On February 18, 2021, Detective Gary Capellan searched § 87(2)(b) in the Bronx

Allegation E- Abuse of Authority: On February 22, 2021, Detective Edelman Santos entered § 87(2)(b) in the Bronx

Allegation F-Abuse of Authority: On February 22, 2021, Detective Edelman Santos searched § 87(2)(b) in the Bronx

§ 87(2)(b) lives at § 87(2)(b) alone, though her son still has a room there. § 87(2)(b) was § 87(2)(b)'s home attendant/home aide from August 2020 to March 2021. § 87(2)(b) went to § 87(2)(b)'s apartment every Monday from 9AM-12PM, Wednesday from 9AM-12PM, and Friday from 9AM-1PM to help her with chores. § 87(2)(b) understood in early 2021 that § 87(2)(b) was § 87(2)(b). § 87(2)(b) let him use her address on mail for approximately three months (BR2).

Det. Santos was the lead detective for the NYPD in a JAWS (Joint Absconder Warrant Squad) investigation with the Parole Division. Det. Santos explained that detectives are assigned different investigations and he became the lead on § 87(2)(b)'s parole warrant in September 2020 (BR3).

Department of Corrections Warrant #§ 87(2)(b) was issued on § 87(2)(b) to retake and detain parolee § 87(2)(b) for violating his release agreement (BR4).

When Det. Santos began investigating, he saw § 87(2)(b) was paroled to § 87(2)(b) and he inquired to get all the other paperwork from the Parole Division. The Parole Division had noted in the investigation paperwork that § 87(2)(b) was continually inquiring into § 87(2)(b)'s status and so her name, address, and phone were on the paperwork. Det. Santos investigated further by conducting computer searches and inquires to find § 87(2)(b)'s connection to § 87(2)(b). He used the TLO search function to look up § 87(2)(b)'s known addresses and associates. In addition, Det. Santos believed that § 87(2)(b) would be at § 87(2)(b) because they had tracked him as using his benefit card in the neighborhood (BR3).

The DD5 from the Bronx Warrant Squad (BR4) pursuant to Warrant #§ 87(2)(b) shows Det. Santos' searches to find § 87(2)(b)'s address, § 87(2)(b)'s address, and finding where § 87(2)(b) used his benefit card (BR5).

On February 18, 2021 at 6:30AM, Det. Santos went with Det. Capellan and a parole investigator to § 87(2)(b)'s residence at about 6:30AM. He believed § 87(2)(b) could be there based on his computer searches as noted in the DD5. This was the first contact he had with § 87(2)(b) (BR3).

§ 87(2)(b) explained that Det. Santos knocked on her apartment door and she opened it. Det. Santos introduced himself and gave her a business card. Det. Santos had a photograph of § 87(2)(b) and told her that § 87(2)(b) who was previously incarcerated for murder, was now wanted for a parole violation relating to his previous incarceration. She told Det. Santos that that he did not live there but that he worked for her and sometimes stayed there. § 87(2)(b) also told him the days and times that he worked for her as her home assistant. Det. Santos said that there was a warrant for § 87(2)(b)'s arrest. § 87(2)(b) said she then stood to the side of the door for the detectives. Det. Santos then entered her apartment. § 87(2)(b) alleged that Det. Santos searched her apartment by looking in her son's room, her room, and lifted sofa cushions. She also alleged that Det. Capellan asked her to open her hallway closets, pulled out shoe boxes, and then found an envelope with mail addressed to § 87(2)(b) at § 87(2)(b) in the bathroom (BR2).

Det. Santos corroborated § 87(2)(b)'s statement in that he had a photograph of § 87(2)(b) introduced himself, and told her why they were there. Det. Santos advised her that he had an active parole warrant for murder and asked if he could come in. She consented for them to come in by saying, "come in" and moved away from the door. Det. Santos asked her to open her son's room and he looked in the closets and under the bed. Det. Santos then asked her to open her own room and looked under the bed. Det. Santos clarified that he only looked in places where a person could be hiding, such as under the bed or in a closet. He denied that he or Det. Capellan searched in any shoe boxes or anywhere for any evidence. When § 87(2)(b) said that § 87(2)(b) stays at her apartment, Det. Santos believed this meant that he was sleeping there sometimes. In the living room laying out in plain sight, Det. Santos saw mail addressed to § 87(2)(b) at § 87(2)(b) and male clothing. § 87(2)(b) said the items were § 87(2)(b)'s property. This evidence made him continue to believe that § 87(2)(b) lived and stayed at this location. § 87(2)(b) said again that he stayed there (BR3).

Det. Capellan testified that he and Det. Santos arrived at the apartment and § 87(2)(b) opened the door and told them they could enter. Det. Capellan searched the apartment only in places a person could be hiding. Det. Capellan and Det. Santos split up when they searched. Det. Capellan searched the bedrooms by looking under the beds. He never lifted sofa cushions in any rooms.

Det. Capellan opened the door to the hallway closets and moved clothes to the side to see if anyone was hiding under the clothes. He did not remember if there were shoeboxes in the closet, but he would not ever open a shoe box because a person cannot fit in there. In his search of the bathroom, he did not find anything at all and looked only in the bathtub (BR5).

On February 22, 2021, at 9:30AM, § 87(2)(b) looked out of her apartment and saw Det. Santos get out of a car and walk toward her apartment building. When she saw Det. Santos out of the window, she already knew he was coming up to her apartment, so she preemptively opened the door to her apartment and waited for him to come in. She let him in because she had nothing to hide (BR2).

Det. Santos went to § 87(2)(b)'s residence because it was when § 87(2)(b) said that § 87(2)(b) works for her. Det. Santos asked her if he could come in and said that he was there to find § 87(2)(b). She said that they could come in (BR3).

Det. Santos and § 87(2)(b) both explained to the investigation that Det. Santos asked if § 87(2)(b) was in the apartment. § 87(2)(b) said he was not. Det. Santos searched in the same locations and ways as Det. Santos had on February 18, 2021 because he had to verify that § 87(2)(b) was indeed not there. Det. Santos then left (BR2; BR3).

As per *People v. Watson*, 101 A.D.3d 913, warrantless searches are "per se unreasonable under the Fourth Amendment subject only to a few specifically established and well-delineated exceptions." One exception is that "the police may lawfully conduct a warrantless search when they have obtained the voluntary consent of a party who possesses the requisite degree of authority and control over the premises or personal property in question" (BR7).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation G-Abuse of Authority: On March 8, 2021 Detective Edelman Santos threatened to damage § 87(2)(b)'s property

Allegation H- Abuse of Authority: On March 8, 2021, Detective Edelman Santos entered § 87(2)(b) in the Bronx

On March 8, 2021 at about 6:30PM, § 87(2)(b) heard a knock on the door but paid no attention to it at first. § 87(2)(b) was in the shower, left the bathroom, and looked through the peephole. § 87(2)(b) said she tried to open the door for the detectives to enter when the lock was jammed. When she finally got it open, Det. Santos, Parole Investigator Fox, and Det. Galasso entered (BR2).

On March 8, 2021, Det. Santos understood § 87(2)(b) to still be going to § 87(2)(b) because of § 87(2)(b)'s schedule that § 87(2)(b) provided on February 18, 2021. He went with Det. Galasso and Parole Investigator Fox. As soon as Det. Santos arrived at the apartment, he heard movement and water in the apartment. He knocked and the sounds stopped. He knocked a

few more times, advised that he needed to come in and would break the door if needed, and attempted to call § 87(2)(b). Det Santos explained that with a parole warrant, he has the authority to enter in any location that Det. Santos believes § 87(2)(b) would be in, regardless if it was a third-party residence. Because § 87(2)(b) had told him when § 87(2)(b) was staying at the residence, § 87(2)(b)'s property and mail were there, and he heard sounds in the apartment, he had reason to believe § 87(2)(b) was in the apartment at that time. Det. Santos advised them again that he needed to come in and then called his supervisor, Sgt. Ludington, to let him know what was going on. § 87(2)(b) finally opened the door and Det. Santos did not have to take down the door. § 87(2)(b) was in the living room (BR3).

§ 87(2)(b) and Det. Santos both explained that § 87(2)(b) immediately directed Det. Santos to § 87(2)(b) sitting in the living room by stating, "he is right there." Det. Santos and Det. Galasso sat § 87(2)(b) on the sofa, let him gather his clothes, and handcuffed him. They removed him from the apartment (BR2; BR3).

People v. Gordon, 176 Misc. 2D 46 states that preliminarily executive law § 259-c (6) provides that the New York State Board of Parole shall "have the power to revoke the parole or conditional release of any person and to authorize the issuance of a warrant for the retaking of such persons". Moreover, the lawful mandate of the parole warrant clearly establishes the probable cause to seize the defendant and to take him into custody wherever he can be found (*People v Dyla*, 142 AD2d 423, 429). Indeed, the seizure of the defendant would be lawful and proper even were that seizure effectuated in the parolee's residence with or without a warrant, or whether or not such taking would be in violation of *Payton v New York*)

In the case of *People v. Satornino*, 153 A.D.2d 595 (2d Dep't 1989), the defendant's mother who owned the home consented to the police detectives' entry. Consent can be established by conduct as well as words. In this case the defendant's mother told the detectives that her son was in his bedroom and pointed to the room. Thus, by her words and conduct she indicated her consent (BR9).

§ 87(2)(g)

[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in one allegation (BR9):
 - § 87(2)(b) [REDACTED]
- Detective Edelman Santos has been a member of service for 11 years and has been subject in four CCRB complaints and 12 allegations, none of which were substantiated. § 87(2)(g)
- Detective Gary Capellan has been a member of service for 10 years and has been a subject in seven CCRB complaints and 17 allegations, of which two were substantiated (BR11).
 - 201503326 involved substantiated allegations of physical force and property damage against Det. Capellan. The Board recommended Command Discipline

A and the NYPD imposed Command Discipline A. § 87(2)(g)

- Detective Anthony Galasso has been a member of service for 15 years and has been subject in four CCRB complaints and 10 allegations, none of which were substantiated.

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of August 12, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (BR14).

Squad: ____7____

Investigator: _Lianne May_____ Investigator Lianne May _ __September 20, 2021
Signature Print Title & Name Date

Squad Leader: _____ Manager Vanessa Rosen September 20, 2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date